



DMCC Business Centre – JGX
Service Agreement
Part I – PARTICULARS
Contract No. LE-495356

1	Effective Date	November 10, 2024
	Commencement Date	November 10, 2024
	Expiry Date	November 9, 2025

2	The Provider	
	Name	Dubai Multi Commodities Centre Authority
	Address	PO Box 48800 Dubai United Arab Emirates
	Telephone No.	+971 4 363 3637
	Email	businesscentre@dmcc.ae

3	The Customer	
	Company Name	LOTTA LOGISTICS DMCC Unit No: 3837 DMCC Business Centre Level No 1
	Address	Jewellery & Gemplex 3 Dubai United Arab Emirates
	Telephone No.	+971502700584
	Email	team@corp-management.com

4	Fees and Payment Schedule
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4.1 Fees

Building	Floor	Unit Code	Desk Fee (AED)	Security Deposit (AED)	Administration Fee (AED)	VAT (AED)	Total (AED)
Jewellery & Gemplex 3	1	30-01-3837	16,000.00	0.00	625.00	831.25	17,456.25

4.2 Payment Schedule

Payment Option	Installment Due Date	Installment Amount (AED)	VAT Amount (AED)
Annually	November 10, 2024	16,625.00	831.25

Valid in DMCC Free Zone only and subject to the Terms and Conditions attached and all rules and regulations of DMCCA, as may be amended from time to time. **Document Reference No.: 140439202382**

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PART II - TERMS AND CONDITIONS

1 DEFINITIONS

The defined terms used in these T&Cs shall have the following meanings:

Addendum means the addendum to these T&Cs;

Administration Fee means the fee for the provision of the Business Centre Services as set out in item 4 of the Particulars;

Affiliate means any entity that directly or indirectly controls is controlled by, or is under common control of a Party from time to time;

Building means the building in which the Centre is located;

Business Centre Services means the provision by the Provider of 24-hour security and immediate access to move-in during Business Hours, desk with one chair, one electrical power outlet, office maintenance, air-conditioning, lighting, power, daily housekeeping service, Network Connectivity Services and shared restroom access, as well as any additional services set out in the Addendum;

Business Day means Monday to Friday inclusive but with the exception of any public holiday in the UAE;

Business Hours means 8.00 am until 8:00 pm on Business Days;

Centre means the DMCC Business Centre, in which the Desk and Business Centre Services are provided, in the DMCC Free Zone;

Civil Code means the United Arab Emirates Federal Law No. 5 of 1985 regarding the Civil Transactions Law;

Commencement Date has the meaning ascribed to it in item 1 of the Particulars;

Desk means the flexi desk or co-working space specified in item 4 of the Particulars;

Desk Fee means the fee identified in paragraph 4 of the Particulars (as may be amended from time to time) to be paid by the Customer to the Provider for the provision of the use of a Desk;

Customer means the Party identified in item 3 of the Particulars;

DMCCA means Dubai Multi Commodities Centre Authority, governed by Law No. (3) of 2020 issued in the Emirate of Dubai;

DMCC Free Zone means the free zone operated by DMCCA;

DMCC Licence means a licence issued by DMCCA to operate within the DMCC Free Zone;

Effective Date means the date referred to in item 1 of the Particulars;

Expiry Date means the expiry date set out in item 1 of the Particulars;

Law means all national, state, local, and municipal legislation, regulations, directives, statutes, by-laws, approvals, and other laws and any other instrument or direction from officials having the force of law as may be issued and in force from time to time (and any amendment or subordinate provisions thereto);

Master Community means the entire master community comprised in the DMCC Free Zone developed or to be developed on a portion of the land comprising Plot 814, Parcel ID No. 393 Emirates Hill First, Dubai and situated between 5th and 6th Interchanges, Sheikh Zayed Road, Dubai, which includes all and any reductions and extensions from time to time;

Network Connectivity Services means internet communications access;

Optional Services means additional services, if any, offered by the Provider from time to time, which are subject to additional charges;

Particulars means the particulars to which these T&Cs apply;

Parties means the Provider and the Customer, with each being a **Party**;

Payment Schedule means the payment schedule set out in item 4.2 of the Particulars;

Portal means the Provider's online portal;

Provider means the Party identified in item 2 of the Particulars;

Relevant Authorities means the Government of the United Arab Emirates or the Emirate of Dubai, any local, regional, territorial, free zone, municipal government, ministry, governmental department, commission, board, bureau, agency, instrumentality, executive, utility provider, judicial or administrative body, having jurisdiction over Master Community including but not limited to DMCCA, Dubai Municipality, the Dubai Electricity and Water Authority, and Dubai Roads and Transport Authority;

Rules and Regulations means all rules and regulations which are applicable in the DMCC Free Zone, as may be amended from time to time, copies of which may be found at the following link: <https://www.dmcc.ae/free-zone/support/compliance-and-regulations>;

Security Deposit means the deposit paid by the Customer to the Provider as security for the performance of the Customer's obligations under these T&Cs as described in item 4.1 of the Particulars;

T&Cs means these standard, non-negotiable terms and conditions and the Particulars, including any amendments hereto;

Term means the period during which the Customer may avail the Desk, the Business Centre Services and any Optional Services, subject to these T&Cs which commences on the Commencement Date, and unless terminated earlier, ends on the Expiry Date;

UAE means the United Arab Emirates; and

VAT means any form of goods and services tax levied in the UAE or Dubai from time to time.

2 USE OF SPACE

- 2.1 In consideration of the payment by the Customer of the Desk Fee to the Provider, the Provider will grant access to and use of the Desk for up to the number of hours specified in the Addendum per month on a non-exclusive basis.
- 2.2 The Desk will be allocated by the Provider at the time of booking and is available on a first-come, first-served basis.

- 2.3 Use of the Desk shall be subject to the Customer conforming to and abiding by these T&Cs and all applicable Rules and Regulations.
- 2.4 The Customer acknowledges and agrees that:
- (a) the granting of access to the Centre is personal to the Customer and shall not apply to any of its nominees, assigns, successors, or successors-in-title.
 - (b) any rights granted pursuant to these T&Cs do not constitute a tenancy right;
 - (c) possession and control of the Centre shall at all times remain vested in the Provider, and the Customer shall not have any estate or interest in any part of it;
 - (d) the Customer shall not at any time be entitled to use the Centre to the exclusion of the Provider or any other party; and
 - (e) the Provider and any other person authorized by the Provider may enter the Centre at any time and for any reason and to use it in common with the Customer.
- 2.5 The Provider shall provide the Business Centre Services to the Customer during the Term in consideration of the payment by the Customer of the Administration Fee to the Provider.

3 SECURITY DEPOSIT

- 3.1 The Customer shall pay the Security Deposit, if applicable, as stated in the Particulars prior to the Effective Date.
- 3.2 Subject to Clause 3.3, the Security Deposit will be returned to the Customer within 60 days following the Expiry Date without any interest, and less the deduction of all such sums as are properly due to the Provider.
- 3.3 If the cost of the monthly Optional Services provided to the Customer exceeds 50% of the Security Deposit, the Customer shall increase the Security Deposit upon the written demand of the Provider to do the same.
- 3.4 The Provider may use the Security Deposit for payment of any amount due to the Provider under these T&Cs, including but not limited to, damage caused by the Customer or any unpaid amounts relating to the provision of the Business Centre Services or Optional Services (where applicable). Where any proceeds of the Security Deposit are utilized during the Term, the Provider shall be entitled to request the Customer to provide additional funds to the Provider within 7 days to restore the Security Deposit to its full amount.

4 NETWORK CONNECTIVITY SERVICE

- 4.1 The Provider shall provide Network Connectivity Services free of charge to the Customer subject to the following terms and conditions:
- (a) the Provider will not provide any computer or telephone equipment to the Customer, including but not limited to any individual telephone lines, hardware, software, peripherals, or other related equipment whatsoever;
 - (b) the Customer shall only access websites that do not breach the telecommunication policies of any telecommunications services provider, any Relevant Authority, the Provider, or any Law;
 - (c) the Provider may withhold internet access to the Customer and or terminate these T&Cs with immediate effect if there is any infringement or illegal use of the Network Connectivity Services by the Customer;
 - (d) the Network Connectivity Services do not include allocation of telephone numbers or telephone usage charges;
 - (e) the Provider shall not be liable for any loss caused as a result of the Customer's use of the Provider's Network Connectivity Services including, but not limited to, any data loss, hacking, protection, or security issues; and
 - (f) the Customer shall not modify or install any network points.

5 GENERAL CUSTOMER OBLIGATIONS

- 5.1 In using the Desk, Business Centre Services and the Optional Services, the Customer undertakes and agrees that:
- (a) the use of the Desk is subject to 24-hour advance booking and is for use during Business Hours only;
 - (b) the Business Centre Services will be used for general office purposes only;
 - (c) the Customer shall notify the Provider immediately of any damage caused by the Customer or the Customer's employees, agents, appointees, or visitors to the Centre or anything therein;
 - (d) the Customer shall be liable for all damage caused by the Customer and the Customer's employees, agents, appointees, and visitors to the Centre and shall indemnify and hold harmless the Provider and DMCCA from any and all losses suffered by any party in connection with such damage;
 - (e) the common areas of the Centre will only be used by the Customer, the Customer's employees, agents, appointees, or visitors in such a way as to have regard for the rights and interests of other users and so as not to cause a nuisance to other users;
 - (f) the Customer shall not install any fixtures or fittings in the Centre;
 - (g) the use of the Business Centre Services and the Optional Services are only available to the Customer to the extent its DMCC Licence remains valid;
 - (h) unless otherwise agreed by the Provider, only one authorized individual may use the Desk provided under these T&Cs at any given time;
 - (i) the Customer shall fully indemnify the Provider against any expenses, costs, claims, damages, or penalties incurred by the Provider in connection with the use by the Customer of the Desk and Business Centre Services, howsoever occasioned;
 - (j) the Customer shall not carry on any business which could be construed by the Provider or Relevant Authorities as illegal, defamatory, immoral, or obscene and will not use the Business Centre Services (whether directly or indirectly) for any such purpose;
 - (k) all authorized Customer employees wishing to use the Desk provided under these T&Cs must be nominated representatives under the Customer's DMCC Licence, and any complaints in connection with such use must be reported to the Provider's administration team immediately; and
 - (l) the Provider reserves the right at any time to modify the Centre, Business Centre Services, or Optional Extra Services and to impose new or additional terms or conditions on the Customer's use of the Business Centre Services or the Optional Extra Services and the Customer will cooperate where necessary to assist in the implementation of such changes.

6 PAYMENT

- 6.1 On or prior to the Effective Date, the Customer shall pay the Administration Fee and the Desk Fee in accordance with the Payment Schedule.
- 6.2 All payments due according to these T&Cs must be paid via the Portal.
- 6.3 Any Optional Service Fee or charge associated with extra hour usage of a Desk shall be settled by the Customer through the Portal prior to the provision of that Optional Service or the Desk usage.
- 6.4 If payment of any sum under these T&Cs is not made within 7 days of the due date, the Provider may apply interest on any such outstanding sums at the rate of 12% per annum, accruing daily.
- 6.5 All sums payable under these T&Cs are exclusive of VAT unless stated otherwise and the Customer shall bear the cost of any applicable VAT imposed from time to time.

7 TERM AND TERMINATION

- 7.1 These T&Cs will continue for the Term.
- 7.2 The Provider may terminate these T&Cs immediately without the requirement of a court order or further notice if:
 - (a) the Customer fails to pay the Administration Fee or the Desk Fee in accordance with these T&Cs;
 - (b) the Customer fails to pay the Optional Services Fee within 30 days of the date of an invoice for the same;
 - (c) the Customer's DMCC Licence is terminated or is invalidated during the Term; or
 - (d) the Customer breaches any term of these T&Cs and does not rectify the breach within seven (7) days of receipt of written notice to do so.
- 7.3 Unless otherwise agreed with the Provider, the Customer may terminate these T&Cs prior to the Expiry Date, provided that one (1) month's prior written notice is issued by the Customer to the Provider.
- 7.4 If the Customer subsequently decides to enter into a Serviced Desk or Serviced Office Agreement; the balance of the Desk Fee (pro-rated for the remainder of the Term or renewal term) and the Security Deposit (subject to any deductions pursuant to these T&Cs), shall be credited by the Provider against the amount for the relevant Serviced Desk or Serviced Office fee and the Customer accepts that it will not be eligible for any refund of the Administration Fee.
- 7.5 Unless otherwise agreed by the Provider, the Customer shall not be entitled to any refund of the Desk Fee, Administration Fee, or any Optional Services Fee where these T&Cs are terminated prior to the Expiry Date for any reason whatsoever.
- 7.6 If the Customer fails to make payment under the terms of these T&Cs when due, the Provider may, in its sole discretion:
 - (a) refuse access to the Customer or any of the Customer's employees, agents, appointees, or visitors to the Centre or the Building;
 - (b) retain any correspondence addressed to the Customer and telephone messages intended for the Customer; and
 - (c) exclude the Customer from further use of any Business Centre Services and Optional Services, until all outstanding sums are paid.
- 7.7 Unless otherwise agreed by the Provider, the Customer shall not be entitled to any refund of the Desk Fee paid and due up to and including the date of termination or the Security Deposit, or any other services fee where these T&Cs are terminated prior to the Expiry Date for any reason whatsoever.
- 7.8 For the avoidance of doubt, the Administration Fee is non-refundable.
- 7.9 In addition to the Provider's rights set out in these T&Cs, in the event that the Customer leaves any of its property in the Centre following the Expiry Date or date of termination of these T&Cs, the Provider may, in its absolute discretion, dispose of the property in any manner it deems appropriate including, but not limited to, disposal, sale or donation of the same. The Provider may set off any proceeds from the sale of the Customer property against any debts payable to the Provider by the Customer. The Customer shall be liable for any costs of disposal.

8 INSURANCE AND LIMIT OF LIABILITY

- 8.1 The Customer shall, throughout the duration of the Term, keep itself insured (with a reputable insurer acceptable to the Provider), against all insurable liabilities in connection with their use of the Desk.
- 8.2 Where requested by the Provider, the Customer shall provide the Provider with certificates of insurance, receipts for the current year's premiums, and any other proof of insurance the Provider may reasonably require.
- 8.3 To the extent permitted by Law, the Provider shall have no liability to the Customer in respect of:
 - (a) any act, omission, negligence, delay, or default by any of the Provider or its employees, agents, appointees, or visitors;
 - (b) any loss experienced or suffered by the Customer or any of the Customer's employees, agents, appointees, or visitors in any way associated, with their access to the Building or use of the Desk; or
 - (c) the provision of the Business Centre Services or the Optional Services.

9 RENEWAL

- 9.1 If the Customer wishes to renew these T&Cs, the Customer shall notify the Provider in writing **1 month** prior to the Expiry Date of such requirement.
- 9.2 In the event that the Customer fails to comply with the notice period set out in Clause 9.1 but proceeds to renew these T&Cs, the Customer shall be liable to pay to the Provider AED 500 per month (in whole or in part) from the relevant Expiry Date.
- 9.3 Any renewal of these T&Cs shall be at the sole discretion of the Provider and the Customer's compliance with these T&Cs and DMCC's licensing rules and regulations.
- 9.4 Any sums charged under this Clause 9 may be deducted by the Provider from the Security Deposit and any sums not covered by the Security Deposit shall be paid by the Customer within 7 days of demand by the Provider.

10 NOTICES

- 10.1 All notices given in connection with this Contract shall be sent via the Portal, or, in the case of notices given to the Customer by the Provider, may be sent to the Customer's email address as set out in the Particulars. This clause does not apply to the service of any proceedings or other documents in any legal action.

11 MISCELLANEOUS

- 11.1 These T&Cs and use of the Desk and Business Centre Services are personal to the Customer and are not capable of being assigned or shared. The Provider



may assign or transfer any or all of its rights and obligations under these T&Cs to an Affiliate without the consent of the Customer.

- 11.2 If the Customer is a company, the Customer must obtain written consent from the Provider prior to any change in the ownership or management of the Customer (or its relevant holding company) (including any changes in beneficial ownership) which would constitute a change of controlling interest of the Customer. The Provider may terminate these T&Cs in its sole discretion where the Customer fails to obtain consent in accordance with this Clause 11.1.
- 11.3 The Customer shall at all times during the Term comply with Law.
- 11.4 Clauses 1, 3.3, 2.5(c), 6.4, 7, 10, and this Clause 11 shall survive the expiration or termination of these T&Cs.
- 11.5 These T&Cs shall be governed by the laws of the Emirate of Dubai and the laws of the United Arab Emirates as applicable in the Emirate of Dubai.
- 11.6 If any dispute, claim, controversy, or difference between the Parties arises out of or in connection with these T&Cs, including any question regarding its existence, validity, interpretation, or termination (**Dispute**), then the Parties shall use their best endeavors to settle the Dispute. If the Parties do not reach a resolution within 30 days, then the Dispute shall be finally settled by the courts of the Emirate of Dubai.

ADDENDUM

Maximum use hours per month 16 hrs

Service Description	Conditions	Eligibility
Meeting Room	Subject to any booking policies in place from time to time.	Yes
Printer / Scanner	Subject to availability.	Yes
Auditorium	Subject to any booking policies in place from time to time.	No
Additional Space hours	Subject to any booking policies in place from time to time.	Yes
Access Card	The customer shall pay for the lost and damaged access card.	Yes
Café	The charges will vary depending on the order placed.	No
Lockers	It can be used during office hours every day.	No
Phonebooth	Subject to availability.	No
DMCC Coworking App	Every user should be registered to the app to benefit from the services of the coworking and the use of the facility.	No